

5-6. 23CV03337 OBRIEN, CAMERON RILEY V. PBM SUPPLY & MFG INC ET AL

EVENTS: (1) Defendant's Motion to Compel Arbitration

*(2) Case Management Conference *Special Set*

The Court finds that Defendant PBM Supply & Mfg Inc.'s ("Defendant" herein) conduct is inconsistent with an intent to arbitrate. Specifically, Defendant failed to move to compel arbitration for over two years and its litigation conduct evidences a waiver of the right to arbitrate. Defendant's Motion to Compel Arbitration is denied. The Case Management Conference is continued to July 29, 2026 at 10:30 a.m. Case Management Conference Statements are to be timely filed and served.

7. 24CV00332 TACALO, ALEXANDRA V. LARA, ANTHONY ET AL

EVENT: Defendants City of Gridley and Anthony Lara's Motion for Summary Judgment or, in the Alternative, Summary Adjudication

The Court, in its discretion, is inclined to consider the untimely filed Opposition and continue this matter to June 10, 2026 at 9:00 a.m. to allow for the filing of a substantive Reply.

8. 24CV00765 HATZIS, MORGAN RAE V. PRIETO, MARIA NERISSA ET AL

EVENT: Plaintiff's Motion for Monetary Sanctions

The Proof of Service on the Amended Motion indicates that it was served electronically on May 6, 2026, which is only ten Court days' notice. Pursuant to *Code of Civil Procedure* §§1005 and 1010.6(3)(B), six additional Court days' notice, plus two additional Court days' notice is required for electronic service. While the Court previously indicated that Plaintiff was authorized to file an Amended Motion, it was under the assumption that the Amended Motion would be properly noticed. The Court continues this matter to June 24, 2026 at 9:00 a.m. to allow for proper notice. Any Opposition and/or Reply shall be filed and served pursuant to *Code of Civil Procedure* §§1005 and 1010.6 in accordance with the new hearing date.

9. 24CV01428 LARSON, COREEN V. PUTZMEISTER AMERICA, INC.

EVENT: Defendant's Motion to Continue Trial Date

Pursuant to the Stipulation of the parties and the Order to Continue Trial Date executed by this Court on May 14, 2026, Defendant's Motion to Continue Trial Date is moot and is off calendar.

10. 24CV02608 LAKEVIEW LOAN SERVICING, LLC V. DURAN ANGEL, LUIS A ET AL

EVENT: Plaintiff's Motion to Stay Proceedings Pending Loss Mitigation

The Motion is unopposed and is granted. The Case Management Conference on June 24, 2026 is continued to September 30, 2026 at 10:30 a.m. The Court will sign the form of order submitted by Plaintiff.

11-12. 24CV02890 RAY, ROWENA V. SIERRA CENTRAL CREDIT UNION

*EVENTS: (1) Motion for Final Approval of Class Action and PAGA Settlement,
(2) Review Hearing – Final Settlement Approval*

The Motion for Final Approval of Class Action and PAGA Settlement, Attorneys' Fees and Costs, Enhancement Award, and Settlement Administration Costs is granted. The Court will sign the form of order submitted by counsel with the addition of the final compliance hearing date on December 2, 2026 at 10:30 a.m., and a deadline for filing the Declarations attesting to compliance no later than 7 calendar days before the hearing.

13. 25CV01221 VETTER, KRISTOPHER GUY V. CITY OF CHICO

EVENT: Motion to Compel Further Discovery Responses; and for Monetary Sanctions

The Court finds, as to Special Interrogatories, Set Two, that the 35-question limit set forth in *Code of Civil Procedure* §2030.030(a)(1), (b), has been exceeded. Plaintiff's subsequent "withdrawal" of Special Interrogatories, Set One, after Defendant had provided responses is inappropriate and of no effect. Given that Plaintiff failed to provide a Declaration of Necessity, as required by *Code of Civil Procedure* §2030.050, the Motion to Compel further responses to Special Interrogatories, Set Two is denied.

As to Request for Production of Documents, Set One, the Court finds that neither the term "INCIDENT" or "property" or "PRR" are so ambiguous as to render the Requests unintelligible and prevent the Defendant from responding. As such, the conclusion that Defendant is unable to comply because the terms INCIDENT, property and/or PRR are undefined in Propounding Party's Requests for Production, lacks merit and the Court orders Defendant to provide further responses to Request for Production Nos. 1, 2, 3, 4, 5, 6, 7, 8, and 9. In regard to Request No. 10, Defendant's response does not satisfy the requirement of *Code of Civil Procedure* §2031.210 which requires a response include one of the following: "(1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling pursuant to paragraph (2) of subdivision (c) of Section 2031.030 and any related activities. (2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item. (3) An objection to the particular demand for inspection, copying, testing, or sampling." If there are no documents to support this affirmative defense, the